ICO complaint about DWP subject access handling

Toms Jansons | 14 October 2026

Complaint account through 10 October 2026

My complaint

I ask the Information Commissioner to investigate DWP's handling of my subject access request of 17 July 2026 and my complaint about that handling of 31 August 2026. I seek access to my personal information, an explanation of how these matters were handled and a separate outcome for the data-protection complaint.

By 10 October 2026, my journal contained no response completing the SAR and no separate acknowledgement, reference number or outcome for the data-protection complaint. DWP did reply substantively about the Universal Credit Claim Review, but those replies did not answer my access request or give an outcome for my separate complaint.

Original request and routing

> **J07 | 17 Jul 2026 at 12:26pm | Toms Jansons**
>
> Selected extract
>
> I am also making a Subject Access Request under UK data-protection law for a copy of the personal data held about me by the Department for Work and Pensions, including data processed through Universal Credit and Jobcentre Plus, where applicable.
>
> [...]
>
> Please record 17 July 2026 as the date of this request.
>
> Please confirm whether this journal entry will be forwarded to the appropriate DWP data-protection team. If the journal is not the official route for completing the request, please provide the official submission route and explain what identification or other information is required.

The full July entry is in E05_SAR_17_July_2026.pdf at LINK II. It requests categories only where held and insofar as they are my personal data. I followed up on 30 July, asking for routing to the Right of Access/data-protection team. Asking for routing guidance did not withdraw the original request.

ICO guidance says a SAR can reach any part of an organisation without a prescribed form or named contact. If DWP received it on 17 July and no lawful adjustment applied, the ordinary response date was 17 August. Please assess DWP's actual receipt, identification, clarification and extension records. [1, 2]

Separate data protection complaint

J10 | 31 Aug 2026 at 10:33am | Toms Jansons

Selected extract

No acknowledgements have been made. The journal does not show a written acknowledgement, reference number, request for identification or clarification, extension notice or substantive response.

[...]

This message is a follow-up and complaint about the handling of the existing request. It is not a new Subject Access Request and should not reset or replace the original request date or scope.

The 31 August message explicitly complains about the existing SAR and asks for receipt, routing, status and any lawful adjustment. Its full wording is in 03_Data_Protection_Complaint_Account.pdf at LINK III. The August complaint is distinct from the service complaint raised on 17 September.

Please assess the separate complaint-handling duties: acknowledgement within 30 days, appropriate enquiries, progress information and an outcome without undue delay. The acknowledgement period is separate from the SAR response period. Please confirm how DWP registered and handled the 31 August complaint. [3]

Replies I acknowledge

J16 | 8 Sept 2026 at 4:58pm | Alia | Universal Credit Claim Review (Delivery Partner Team 01) (Virtual) Jobcentre Plus

Selected extract

The documents that you provide as evidence on the Universal Credit service remain available for up to 90 days.

To protect your privacy and minimise access to your data, once documents have been uploaded as part of a claim review, they are limited to a small number of staff, that support the agent conducting the review.

Documents are not retained beyond the purpose of the review; to inform the review and ensure correctness of the Universal Credit claim. Once the evidence has been removed from the claim it is not recoverable or viewable on the Universal Credit service.

[...]

We do not request any third party details.

One we have received all required documents a phone call is conducted with an agent to go through your Universal Credit and to make sure your claim is correct and up to date, if any changes need to be made the agent can assist with this. We do not use any automated systems. Human decisions are made.

DWP also explained four months of unredacted statements, the UC route and restricted staff access. On 15 September Mohammed confirmed receipt of my 7 September message and referred the extension request; Huzaifah provided an upload link and a 20 September deadline. On 6 October Mohammed confirmed that correspondence was on my claim record. I acknowledge these replies about the Claim Review.

Processing questions and participation

I seek the personal data held about me and the relevant purposes, recipients, retention and source information. The 8 September reply addressed the UC document-viewing period and stated that documents were not retained beyond the review purpose. Please clarify whether this also covers copies, extracts and resulting records elsewhere, and how incidental third-party information is handled.

On 17 September I said I was arranging to provide statements and was not making answers to my questions a condition of submission. On 19 September I changed my position and withheld the statements because my concerns about the handling remained unresolved. I knew this could have consequences for my claim.

The 21 September reply at 09:38 preceded the completed-upload marker at 09:40. As I explained on 6 October, that upload was correspondence, not bank statements. I ask DWP to confirm what it received and considered.

Harm caused

The unresolved access and complaint handling has contributed to distress, reduced concentration and strain on my wellbeing. Following up and reconnecting requests and documents has taken time and effort and weakened my trust. The journal records this effect on 10 and 17 September and 1 and 6 October.

Without the requested information, it has been harder to check what DWP holds about me and identify whether correction is needed. Repeatedly following up and trying to establish how messages and documents are linked between teams has added to that burden.

> **J22 | 17 Sept 2026 at 11:47am | Toms Jansons**
>
> Selected extract
>
> Repeatedly reconnecting requests, explanations and corrections across teams has affected my wellbeing and concentration, as recorded in my journal.
>
> [...]
>
> Please identify my review lead, the manager overseeing unresolved issues, and who keeps my documents and questions linked between teams. Please confirm the reviewer can access my submitted formal PDF and journal messages of 7 and 10 September.

I entered supported accommodation on 14 May 2026 after 262 days of homelessness. That history explains my vulnerability and the importance of stability. The unresolved access matter has added to the strain of planning essential living and housing costs. I have not identified an actual payment loss attributable to the SAR handling.

What I ask the ICO to do

- Establish receipt, routing, notices and responses for the SAR of 17 July and complaint of 31 August, retaining their original dates.

- Assess the applicable access and complaint-handling duties, including DWP's substantive explanations and any later correspondence.

- Seek completion of the SAR or a properly explained lawful limitation, and a separate complaint outcome with appropriate progress information.

- Clarify relevant retention and processing information and a usable route to correct any inaccurate personal data identified.

- Ask DWP to preserve relevant records subject to lawful retention and address any identified routing or complaint-handling failure.

Further relevant circumstances

I have not been given a DWP reference number for the SAR or the 31 August complaint in the correspondence through 10 October. Although Claim Review staff and teams are named, I have not been given a clear contact responsible for resolving these two matters. This makes it difficult to track them and escalate concerns.

Lack of access puts me at a disadvantage when checking the records, understanding how information is used, participating in related processes and protecting my position. I need my information and a clear point of contact so that I can make informed decisions and pursue unresolved concerns.

This complaint concerns data protection. Claim Review, attendance, housing and payment matters provide relevant context. I ask the ICO for no benefit-entitlement or sanction decision. Please communicate in writing using the details in my accompanying form.

Evidence access

All five evidence links use password 00000000 - eight digits, no spaces. The evidence index lists the documents and their destinations. Please let me know if any file cannot be opened.

LINK I - Complaint and evidence index

LINK II - Original SAR and follow up

LINK III - August complaint and October routing snapshot

LINK IV - Chronology and DWP responses

LINK V - Impact and supporting evidence



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Records requested from DWP and official references

Please obtain DWP's records of receipt, routing, registration, searches and responses for my SAR of 17 July and complaint of 31 August. Please compare those records with the dated journal entries and retain the original matter dates.

Please also establish whether the reviewing team considered the documents I uploaded on 7 and 21 September, what information it retained and how my outstanding processing questions were referred.

My journal record ends on 10 October 2026. Please consider any subsequent response or decision when assessing the complaint and confirm how and when it was communicated to me.

Official guidance

[1] A request may reach any part of an organisation; a prescribed form or contact is not compulsory.

ICO recognising a subject access request

[2] Organisations normally have one calendar month. Identification, clarification or a properly notified extension may affect timing.

ICO time limits for rights requests

ICO what to expect after a SAR

[3] A complaint must be acknowledged within 30 days; enquiries, updates and the outcome are required without undue delay.

ICO receiving a data protection complaint

I rely on my case correspondence and the ICO guidance linked above.